

BC640943 BC640943

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-06-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C06%2F24%2F2026

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Case Number: BC640943 Hearing Date: June 24, 2026 Dept: N

TENTATIVE RULING

Nonparties Christopher Preston and Stephanie Preston's Motion to Modify the Stipulated Protective Order Governing Confidential Materials is DENIED.

Nonparties Christopher Preston and Stephanie Preston to give notice.

REASONING

Nonparties Christopher Preston and Stephanie Preston ("the Prestons") move the Court for an order modifying the stipulated protective order governing confidential materials in this action, which would permit Defendants Suzuki Motor of America, Inc. and Suzuki Motor Corporation ("Defendants") to produce certain documents designated as confidential in this action to the Prestons' counsel in the Prestons' litigation in a separate case in Alameda County. The documents sought are identified as deposition exhibits from this case, including Defendants' internal emails, Field Technical Information Reports, brake failure investigation records, recall-related communications, business trip reports, hydrogen gas generation analyses, Quality Countermeasure Committee standards, and brake degradation studies, and the Prestons argue that these documents are relevant in their action.

While the Court has the authority to modify the protective order (see Code Civ. Proc., § 2031.060, subd. (b) [regarding issuance of a protective order], the Court lacks a basis to conclude that is proper or necessary here. The Prestons seek documents that are not exclusive to this case, i.e., the documents are Defendants' own documents. The Court recognizes that Defendants have asserted an objection in the Prestons' case that they need not or cannot produce the documents because of the protective order here, but it is for the referee or governing court in the Prestons' case to determine if that is a valid objection, and the Court will not opine here as to whether it is.

The case cited by the Prestons, *Raymond Handling Concepts Corp. v. Superior Court* (1995) 39 Cal.App.4th 584, concerned a protective order that would prohibit the plaintiffs from sharing information with counsel in other cases against the same defendant, and the case analyzed the propriety of the order insofar as it permitted dissemination to counsel in other cases of documents subject to the protective order. (Id. at p. 587.) Specifically, the defendant challenged an order that would allow the plaintiff to give the documents to other plaintiffs in other actions, and the reviewing appellate court concluded that the protective order was proper. (Id. at pp. 590-591.) That is not the issue before this Court. The issue here is whether Defendants can validly avoid giving their documents to the Prestons pursuant to this action's protective order, and that is not an issue for this Court to decide; it is for the Alameda County court. For that reason, Nonparties Christopher Preston and Stephanie Preston's Motion to Modify the Stipulated Protective Order Governing Confidential Materials is DENIED.